

Maqboolan v. State of U.P. — recovery notice, speaking order and s.127

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · WRIT-C No. 38797 of 2019 · **Writ disposed; Executive Engineer to pass a speaking final order; Section 127 left open.**

HEADNOTE

A consumer seeking quashing of a Rs. 12,81,317 recovery notice dated 4 April 2019 and restoration of supply, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, was not granted those reliefs. The Division Bench directed her to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until the objection was decided (whichever earlier), and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Default in appearance revives the recovery citation. The writ was disposed of without examining the demand on merits.

FACTUAL SUMMARY

The petitioner, Maqboolan, filed a writ in the Allahabad High Court to quash a demand and recovery notice dated 4 April 2019 for Rs. 12,81,317 and to restore electricity on account no. 4308529422. She alleged that the respondents were taking coercive recovery action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not try the quantum or legality of the demand.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking final order on recovery

HOLDING

Where a consumer challenges a recovery notice alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, the High Court will not quash the demand or direct reconnection on merits. It may dispose of the writ by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive action pending that process, and leaving the consumer, if aggrieved by the final order, to the statutory appeal under Section 127 of the Electricity Act, 2003. Failure to appear revives the recovery citation. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal A consumer seeking quashing of a Rs. 12,81,317 recovery notice dated 4 April 2019 and restoration of supply, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, was not granted those reliefs.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE DEMAND/RECOVERY NOTICE DATED 04.04.2019 FOR RS. 12,81,317, AND WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED

Alleged non-compliance and want of hearing; the Court did not examine the demand on merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO RESTORATION OF SUPPLY ON ACCOUNT NO. 4308529422

Reconnection was prayed for; no direction to connect was issued. ¶ 1

